NEW JERSEY REALTORS® STANDARD FORM OF NON-EXCLUSIVE TENANT AGENCY AGREEMENT

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TABLE OF CONTENTS

1. AGENCY
2. TENANT'S REPRESENTATIONS
3. AGENCY DISCLOSURE
4. TERM
5. COMMISSION TO BROKER
6. BROKER'S DUTY
7. TENANT'S DUTY
8. OTHER TENANTS
9. DUAL AGENCY
10. DESIGNATED AGENCY
11. NO WARRANTIES OR REPRESENTATIONS
12. APPLICABLE LAWS
13. ALTERNATIVE DISPUTE RESOLUTION/ ATTORNEYS' FEES
14. CONSUMER INFORMATION STATEMENT
15. TERMINATION/BREACH
16. ADDITIONAL TERMS AND CONDITIONS TO AGREEMENT
17. SEVERABILITY
18. ENTIRE AGREEMENT

PARTIES TO THIS AGREEMENT:

Tenant(s): _____ _____ _____ _____ (referred to as **"Tenant"**)

Brokerage Firm: _____ (referred to as **"Broker"**)

Licensee(s): _____ _____ _____ _____ (referred to as **"Licensee"**)

1. AGENCY: _____ (Tenant), _____ (Tenant), _____ (Tenant) and _____ (Tenant) hereby designate Broker as Tenant's non-exclusive agent for the purpose of searching for, locating, and leasing real estate by Tenant in the following areas: _____ (if no municipalities or counties are filled in, then the area shall be New Jersey). The Licensee shall be responsible for ensuring that Broker's duties hereunder are fulfilled; however, Broker may assign other licensees to fulfill such duties, if deemed appropriate by the Broker.

2. TENANT'S REPRESENTATIONS:

(a) Tenant does not have an exclusive business relationship with another real estate brokerage firm.

(b) No exclusive tenant's agency agreement is currently in effect for the area or any part of the area set forth in Section 1, including any protection period following the expiration or termination of the agreement and Tenant will not enter into such an exclusive agreement during the Term of this Agreement.

(c) Tenant has disclosed to Broker, and will continue to disclose during the term of this Agreement, all information about any property Tenant has visited at any open houses, viewed in person or virtually and/or been introduced to by any other real estate brokerage firm that falls within Section 1.

3. AGENCY DISCLOSURE: The real estate license law of the State of New Jersey requires every real estate licensee to disclose the business relationship the licensee will have with Tenant. Accordingly,

I, THE LICENSEE, AS AN AUTHORIZED REPRESENTATIVE OF BROKER, INTEND, AS OF THIS TIME, TO WORK WITH YOU AS A: (choose all that apply)

☐ **TENANT'S AGENT**
☐ **TENANT'S AGENT AND DISCLOSED DUAL AGENT IF THE OPPORTUNITY ARISES**
☐ **TENANT'S AGENT AND DESIGNATED AGENT IF THE OPPORTUNITY ARISES**

The potential for Licensee to work as a Disclosed Dual Agent and/or Designated Agent will arise if/when Tenant becomes interested in inspecting/viewing a property which is listed with the Broker, as discussed in Sections 9 and 10 below.

4. TERM: This Agreement shall begin on _____ and expire when:

(a) Tenant leases property as set forth in Section 1, or at midnight on _____ (**"Term"**), or

(b) _____ days (if no days are filled in, then three (3) days) after Broker or Tenant receives a written termination notice from the other party, but the Protection Period set forth in Section 5(a)(3)(ii) will remain in effect.

The Term of this Agreement may not be extended without the written consent of Tenant.

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5. COMMISSION TO BROKER: No law, governmental agency, trade association or multiple listing service has fixed the amount, format, or rate of any commission or other compensation to be paid to Broker. Although Broker has the right to individually set the commission that it deems to be acceptable for its services, the commission Tenant will pay to Broker is fully negotiable and may be changed at any time if agreed to by all parties in writing. "Commission" includes all payments to Broker for brokerage services provided under this Agreement, including but not limited to, payments from Tenant, a landlord and/or a third party.

(a) Commission From Tenant:

(1) **Retainer Fee:** Tenant will pay Broker ☐ no retainer fee, or ☐ a non-refundable retainer fee in the amount of $ _____ that is due and payable at the time of the signing of this Agreement. This amount is part of, and will be credited towards, any commission due to Broker under this Agreement.

(2) **Commission:** Tenant agrees to pay to Broker the following commission:
☐ _____ (%) percent of the _____;
☐ $ _____ as a flat fee; and/or
☐ Other: _____.
The commission must be objectively ascertainable and may not be open-ended (e.g., it cannot provide that "the Broker's commission will be whatever amount the landlord or listing broker is offering to Broker").

(3) Broker's commission shall be earned, due and payable by Tenant under any of the following circumstances:
(i) If Tenant, Tenant's assignee or legal representative enters into a lease for any real estate introduced by Broker during the Term of this Agreement, except if the lease is timely disapproved under an Attorney-Review Section by an attorney or if the lease is properly terminated and the parties do not subsequently approve or reinstate the lease or agree to a new lease concerning the real estate.
(ii) Section 5(a)(3)(i) shall continue in effect for _____ days after the expiration/termination of this Agreement ("**Protection Period**"), for any Property introduced by Broker during the Term of this Agreement as long as Broker provides Tenant with a list of such real estate within ten (10) days of the expiration/termination of this Agreement. Tenant agrees to provide the list of such real estate to all other brokerage firms and licensees that Tenant may work with during the Protection Period. If Tenant fails to provide that list, Tenant may be liable to pay two commissions: (1) commission to Broker under this Agreement and (2) another commission to the new brokerage firm.
(iii) If Tenant defaults under the terms of a valid lease set forth in Sections 5(a)(3)(i) or (ii).

(4) Tenant shall pay Broker the total commission at closing or, if Tenant defaults on the terms of the contract to acquire the Property, upon Tenant's default.

(b) Commission From Landlord: Under New Jersey law, a landlord may offer a commission to a tenant's broker as a cooperating broker. If the landlord authorizes the payment of any commission to Broker, that amount will be credited towards the commission due to Broker under this Agreement. If the amount of Broker's commission from any source, including any offer of a commission from landlord, listing broker, Tenant, etc., exceeds the commission Tenant has agreed to pay Broker, then the excess will be credited to Tenant unless otherwise agreed to by the parties in writing in Section 16 below or in another writing amending this Agreement.

(1) If the excess is credited to Tenant, Tenant acknowledges the following:
(i) Broker recommended that Tenant contact a tax professional concerning possible tax implications of receiving the credit, including the obligation to pay any applicable taxes.
(ii) Payment of the credit will be disclosed to all parties involved in the transaction.
(iii) Payment of the credit is not contingent upon the use of other services or products offered by Broker or any affiliate of Broker.

(2) If a landlord is offering to pay Broker an amount less than the commission Tenant has agreed to pay Broker, Tenant directs Broker to do the following: (check all applicable instructions)
☐ Include in any offer to lease that landlord will pay the Broker's commission.
☐ Other: _____

6. BROKER'S DUTY: During the Term of this Agreement, Broker and Licensee shall promote the interests of Tenant as follows:
(a) Use diligence in its search to locate a property which is acceptable to Tenant and, in consultation with Tenant, make Tenant aware of all properties that Broker believes would be acceptable to Tenant.
(b) Exercise ordinary care and comply with all applicable laws and regulations.
(c) Use professional knowledge and skills to assist Tenant to negotiate for the lease of such property.
(d) Assist Tenant throughout the transaction and represent Tenant's best interests.

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(e) Help Tenant understand financial issues, such as budget constraints.
(f) Provide Tenant with an overview of the current market conditions and how they may impact Tenant's leasing power.
(g) Schedule showings of properties for Tenant.
(h) Disclose to Tenant all material facts related to the physical condition of the property or concerning the transaction of which Broker has actual knowledge.
(i) Prepare and negotiate with the landlord or landlord's agent a written application or lease on behalf of Tenant for any property that Tenant wants to lease.
(j) Suggest professional referrals, such as attorneys, inspectors, and tradespeople, if requested by Tenant.
(k) Assist in resolving any issues that may arise, as appropriate.
(l) Other: _____
_____
_____

7. TENANT'S DUTY: During the Term of this Agreement, Tenant shall:
(a) Provide accurate and relevant personal information to Broker regarding Tenant's financial ability to lease real estate.
(b) Submit through Broker any offer to lease a property introduced to Tenant by Broker.
(c) Examine any property introduced to Tenant by Broker only by appointments made by and accompanied by Broker, unless otherwise agreed to by Broker.
(d) Conduct all negotiations and communications for properties introduced to Tenant by Broker through Broker.
(e) Unless agreed to by Broker in writing, pay for all products and/or services required in the examination and evaluation of any property, if applicable.

8. OTHER TENANTS: Other potential tenants may be interested in the same properties as Tenant. Tenant agrees that Broker may work with such other potential tenants prior to, during, or after the termination of this Agreement. In any such situation, Broker shall maintain confidentiality and will not disclose to any other potential tenant the terms of Tenant's offer, or any other confidential information concerning Tenant.

9. DUAL AGENCY: Under New Jersey law, Broker may work with both Tenant and a landlord in the same real estate transaction if both Tenant and landlord agree to work with Broker as a "Disclosed Dual Agent". To work as a Disclosed Dual Agent, Broker must obtain the written informed consent from both Tenant and landlord. Tenant understands that, by agreeing to allow Broker to work as a Disclosed Dual Agent, Broker will not be able to represent Tenant or landlord fully and exclusively. As a Disclosed Dual Agent, Broker will not be able to put either Tenant's interests ahead of landlord's interests nor landlord's interests ahead of Tenant's interests. **Broker may act as a Disclosed Dual Agent only if Tenant agrees to sign the "Informed Consent to Dual Agency" form attached to this Agreement.**

10. DESIGNATED AGENCY: Under New Jersey law, Broker may designate two different licensees affiliated with Broker to work with Tenant and landlord in the same real estate transaction if both Tenant and landlord agree. In the context of designated agency, Broker remains neutral and oversees the transaction to ensure each designated licensee is maintaining the full range of fiduciary duties which are ordinarily owed by a licensee who represents solely Tenant as "Tenant's Agent" and by a licensee who represents solely landlord as "landlord's agent." **Broker may appoint a Designated Agent for Tenant only if Tenant agrees to sign the "Informed Consent to Designated Agency" form attached to this Agreement.**

11. NO WARRANTIES OR REPRESENTATIONS: Broker makes no warranties or representations about the value or suitability of any property for Tenant's purposes. Tenant agrees to be responsible for making all inspections, inquiries and investigations. Tenant also agrees to indemnify and hold Broker harmless from and against any and all liability, damages, lawsuits, expenses, etc. resulting from Tenant's selection and use of, or failure to use, any such services or Tenant's election not to have one or more of such services performed.

Tenant agrees to indemnify and hold Broker harmless from and against any and all claims which may lead to a dispute arising from or related to false or incomplete information provided by Tenant. Such indemnification shall include but not be limited to reimbursement for Broker's attorneys' fees and costs.

12. APPLICABLE LAWS: This Agreement shall be governed by and construed in accordance with the laws of the State of New Jersey and any arbitration or lawsuit relating to or arising from this Agreement shall be venued in the State of New Jersey.

13. ALTERNATIVE DISPUTE RESOLUTION/ATTORNEYS' FEES: INSTEAD OF SUING IN COURT, TENANT AND BROKER AGREE THAT ANY DISPUTE ARISING FROM OR RELATED TO THIS AGREEMENT SHALL BE SETTLED ONLY BY ARBITRATION. THE RULES IN ARBITRATION ARE DIFFERENT THAN IN A COURT. THERE IS NO JUDGE OR JURY AND REVIEW IS LIMITED, BUT AN ARBITRATOR CAN AWARD THE SAME DAMAGES AND RELIEF AND MUST HONOR THE SAME LIMITATIONS STATED IN THIS AGREEMENT AS A COURT

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WOULD. Tenant and Broker agree that, before filing for arbitration, any dispute arising from or related to this Agreement shall be submitted to mediation and, if the mediation is unsuccessful, then to arbitration before the American Arbitration Association or a REALTOR® Association located in the State of New Jersey at the choice of the filing party. If mediation and/or arbitration, or if a lawsuit, is filed by Tenant or Broker concerning any issue arising from or related to this Agreement, the prevailing party shall be entitled, in addition to any other remedy, to be paid reasonable attorneys' fees, arbitration fees, court costs and other expenses incurred.

14. CONSUMER INFORMATION STATEMENT: Tenant acknowledges receipt of the attached Consumer Information Statement on New Jersey Real Estate Relationships.

15. TERMINATION/BREACH:

(a) Termination. Tenant acknowledges and understands that this Agreement is a legally binding contract between Tenant and Broker that may be terminated in accordance with Section 4 or for legally sufficient cause.

(b) Tenant's Breach. If this Agreement is not properly terminated and Tenant signs an exclusive brokerage service agreement with another real estate brokerage firm that becomes effective during the Term of this Agreement or that affects Broker's rights during the Protection Period, Tenant will be in breach of this Agreement. If Tenant breaches this Agreement and subsequently leases real property as described in Section 1, Broker will be entitled to pursue all remedies available, including but not limited to recovery of the commission set forth in this Agreement. This provision is in addition to Broker's right to collect a commission if Tenant breaches or defaults on a valid lease to rent property after the commission has been earned.

(c) Broker's Breach. If Broker breaches this Agreement, Tenant will be entitled to pursue all remedies available to Tenant for such breach.

16. ADDITIONAL TERMS AND CONDITIONS TO AGREEMENT (OPTIONAL): Tenant and Broker agree to the following additional terms and conditions that are incorporated into this Agreement (if a specific Section of the Agreement is being amended, it is recommended that the Section be referenced in the following terms): _____

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Initials:

Broker/Licensee: _____ Date: _____ Tenant: _____ Date: _____

Tenant: _____ Date: _____

Tenant: _____ Date: _____

Tenant: _____ Date: _____

17. SEVERABILITY: If any provision of this Agreement, or its application to any person or circumstances, is held invalid or unenforceable, the remainder of this Agreement and its application shall not be affected.

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18. ENTIRE AGREEMENT: This Agreement contains the entire agreement between Tenant and Broker and only may be amended by an agreement in writing signed by Tenant and Broker. No representations have been made by either party, except as set forth in this Agreement. Tenant acknowledges receipt of a signed copy of this legally binding Agreement and agrees to be bound by and comply with its terms and conditions.

IF TENANT DOES NOT UNDERSTAND ALL OF THE TERMS OF THIS AGREEMENT, LEGAL ADVICE SHOULD BE SOUGHT BEFORE SIGNING.

By: _____ _____ _____

Broker/Licensee Tenant Date

_____ _____

Tenant Date

_____ _____

Tenant Date

_____ _____

Tenant Date

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